

PREMIUM

Refusal Decision Guide

Remonstration, judicial review, and what actually changes the outcome

Understand your options after a refusal

Outcome	What it means	What you can do
Refusal	The consulate checked one or more grounds on the standardised EU refusal form.	You can file a Remonstration, and/or reapply.
Remonstration	A German-specific internal objection filed directly with the same consulate, asking them to reconsider - not a court process.	Usually the first step - address the specific ground given, with a clear written objection and any new evidence.
Judicial review	If the Remonstration doesn't succeed, a legal challenge can be filed with the Verwaltungsgericht Berlin (Administrative Court in Berlin), since the Auswärtiges Amt is headquartered there.	A genuine legal process, generally worth professional legal advice rather than attempting alone.
Reapplication	A new application, assessed fresh.	Often the fastest practical path if something material has actually changed.

What actually helps

- Read your refusal form for the exact ground(s) checked, and address that specific point
- If the Verpflichtungserklärung was missing or informal, have your host obtain the proper document before reapplying or remonstrating
- Strengthen financial evidence with a longer, more consistent history rather than a single larger deposit

What not to do

- Don't reapply immediately with an unchanged application
- Don't omit a previous refusal or overstay - checked through the shared Visa Information System (VIS)
- Don't submit materially false information to work around a previous refusal

When to seek professional advice

Consider consulting a German immigration lawyer if you're pursuing a Remonstrations or judicial review, or if you've been refused multiple times despite genuinely strengthening your case.